

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: October 22, 2025

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. The Court uses **Microsoft Teams**. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml.

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV453773	WELLS FARGO BANK, N.A. vs Garreth King	Motion: Summary Judgment/Adjudication Plaintiff's unopposed motion is GRANTED. In response to the Request for Admissions, Defendant admitted he was issued the Personal Loan in question, that he was to repay, that he received monthly statements, that he never disputed the accuracy of any of the monthly billing statements with Plaintiff, and that he failed to remit any further payments on the Personal Loan since December 28, 2023, leaving an outstanding balance of \$21,778.21. There is no disputed issue of fact. Plaintiff to prepare the final order and judgment within 10 days of the date of the hearing. (See Local Civil Rule 7.C ["Proposed orders may not be submitted with moving papers before a hearing on a regularly noticed motion unless ordered by the Court or required by applicable statute or Rule of Court If instructed to prepare an order after a hearing, the proposed order must be lodged with the court electronically in PDF format attached to Judicial Council Form EFS-20"].)

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LINE #	CASE #	CASE TITLE	RULING
LINE 2	23CV415947	Fok et al vs Wong et al	Motion: Compel Defendants move for an order compelling Plaintiff, MABEL FOK, to respond to Defendants' Supplemental Request for Production of Documents (set one) and for sanctions for Plaintiff's failure to respond in any fashion to Defendants' discovery. Defendants' unopposed motion is GRANTED. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel or the dismissal motion, leading the trial court and us to presume they had no meritorious arguments"].) Plaintiff shall provide code-compliant responses without objections within 15 days of service of the final order. The Court will award sanctions in the amount of \$306.00 which represents 2 hours preparation time and a \$40.00 filing fee. The Court will not award sanctions for anticipated travel and appearance at a hearing on the motion, which is unlikely to be contested. Plaintiff shall pay to Defendants these sanctions within 15 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 3	23CV415947	James Fok et al vs Peter Wong et al	Motion: Compel Defendants move for an order compelling Plaintiff, MABEL FOK, to respond to Defendants' Supplemental Interrogatory Requests (set one) and for sanctions for Plaintiff's failure to respond in any fashion to Defendants' discovery. Defendants' unopposed motion is GRANTED. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel or the dismissal motion, leading the trial court and us to presume they had no meritorious arguments"].) Plaintiff shall provide code-compliant responses without objections within 15 days of service of the final order. The Court will award sanctions in the amount of \$306.00 which represents 2 hours preparation time and a \$40.00 filing fee. The Court will not award sanctions for anticipated travel and appearance at a hearing on the motion, which is unlikely to be contested. Plaintiff shall pay to Defendants these sanctions within 15 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 4	25CV455540	Citibank N.A. vs Lucitinna Jimenez	Motion: Admissions Deemed Admitted Plaintiff's unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.). Those matters specified in Plaintiff's Request for Admissions are deemed admitted and/or documents deemed genuine. Plaintiff to prepare the final order within 10 days of the date of the hearing.
LINE 5	25CV460138	Christopher Cheung vs Rivian, LLC	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 5 for tentative ruling.
LINE 6	25CV460423	CITY OF SAN JOSE, a government entity et al vs James Eu et al	Hearing: Status re: Ex Parte Application Parties are to appear at 11:00 a.m. to discuss status and setting. Remote appearance by video is acceptable.
LINE 7	25CV466337	David Green vs Yelena Green et al	Motion to Dismiss Ctrl Click (or scroll down) on Line 7 for tentative ruling.
9:01 LINE 1	25CV472917	LAKIBA SARAN TAYLOR et al vs GREGORY FUNDING et al	Motion: Withdraw as attorney The motion is MOOT. A Request for Dismissal of the entire action was filed on 10/15/2025, and the case was dismissed without prejudice the same day.

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Calendar Line 5

Case Name: *Christopher Cheung vs Rivian, LLC*

Case No.: 25CV460138

"The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense[.]" (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

Plaintiff contends the Purchase Agreement attached to Defendant's motion is inadmissible and that Defendant has not established that he agreed to it. These arguments are unpersuasive. Defendant has met its initial burden by attaching a copy of the arbitration agreement purporting to bear Plaintiff's signature. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Although Defendant need not follow the normal procedures of document authentication (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219), the Court believes Defendant's evidence is more than sufficient to establish authentication.¹ In response Plaintiff does not provide a declaration or any other evidence to suggest he did not enter into the Purchase Agreement. Indeed, as Defendant points out, Plaintiff would be hard pressed to do so when he is bringing suit as the purchaser of the vehicle.

Plaintiff's additional arguments also lack merit. Defendant is not attempting to enforce an arbitration agreement contained within a warranty agreement. The Arbitration Agreement here is contained in the Purchase Agreement that Plaintiff entered into when he purchased the vehicle. In addition, none of Plaintiff's claims arises under the Magnuson-Moss Warranty Act ("MMWA"). Accordingly, Plaintiff's reliance on the MMWA is misplaced. So too is Plaintiff's argument that the Federal Arbitration Act "simply does not apply in state court." (Opposition, at p. 7.) "[T]he parties may ... voluntarily elect to have the FAA govern enforcement of the Agreement, as they did here." (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Lastly, Plaintiff's resort to Code of Civil Procedure § 1281.2 is of no avail. Rather than joining in Defendant's motion or conceding, Plaintiff's opposition, and indeed his filing of the instant action, clearly shows his refusal to arbitrate.

The motion is GRANTED and the case is STAYED under Code of Civil Procedure section 1281.4. The court VACATES the case management conference that is currently scheduled for November 13, 2025 and instead sets this matter for a case status review regarding arbitration on **April 24, 2026 at 10:00 a.m.** in Department 13.

Defendant to prepare the final order within 10 days of the date of the hearing.

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¹ Plaintiff's evidentiary objections are overruled.

Calendar Line 7

Case Name: *David Green v. Yelena Green et al.*

Case No.: 25CV466337

I. BACKGROUND

On May 22, 2025, plaintiff David M. Green (“Plaintiff”) filed a judicial form complaint (“Form Complaint”) against defendants Yelena Green (“Yelena”) and Dmitry Green (“Dmitry”) (collectively, “Defendants”).²

The Form Complaint contains the following, limited information: 1) it is an unlimited civil case; 2) the action is subject to Civil Code section 1812.10; 3) the subject incident took place in Saratoga, CA; 4) Plaintiff is seeking injunctive or equitable relief; and 5) Plaintiff alleges that Defendants took property and have yet to return it. There are no additional allegations or exhibits attached to the Form Complaint.

On June 17, 2025, Yelena, appearing in pro per,³ filed a motion labeled as a Motion to Dismiss directed at the Form Complaint. Yelena is now represented by counsel and apparently intends to go forward with the motion filed by Yelena. On October 8, 2025, Plaintiff filed a response to the motion.

II. PROCEDURAL ISSUES ON MOTION TO DISMISS

As an initial matter, the Court addresses the process of moving to dismiss an action. “The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only where it complies with the requirements for a motion for summary judgment.” (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) Here, Yelena’s motion does not comply with any of the procedural requirements for a motion for summary judgment. With that said, “the motion may be treated as a nonstatutory motion for judgment on the pleadings. Such a motion may be granted when the complaint fails to state facts sufficient to constitute a cause of action.” (*Id.* at p. 5.) Furthermore, the Court is authorized by statute to grant judgment on the pleadings on its own motion. (See Code Civ. Proc., § 438, subd. (b)(2).)

Accordingly, the Court must treat Yelena’s motion to dismiss as a motion for judgment on the pleadings. Further, as courts do not consider extrinsic evidence on pleading motions, it must, if anything, instead treat Yelena’s proffered evidence as a request for judicial notice.

² The court refers to the parties, who share the same last name, by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

³ “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted].)

With that said, Plaintiff filed an amended form complaint on October 20, 2025. Therefore, a motion for judgment on the pleadings is MOOT. (See *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054, quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 [“The filing of [an] amended complaint render[s] [a] demurrer moot since ‘an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.’”].)

III. CONCLUSION

The motion to dismiss, which the Court treats as a motion for judgment on the pleadings, is MOOT and is OFF CALENDAR.

The Court will prepare the final order.

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